

PR-25-001101 IN THE MATTER OF EOFF, MATHEW - a) Petitioner's Motion to Compel Further Responses to Requests for Production of Documents, Set One, and for Monetary Sanctions - GRANTED; b) Petitioner's Motion to Compel Further Responses to Form Interrogatories, Set One, and for Monetary Sanctions - GRANTED; c) Petitioner's Motion to Compel Further Responses to Special Interrogatories, Set One, and for Monetary Sanctions - GRANTED; d) Petitioner's Motion to Compel Further Responses to Requests for Admissions, Set One, and for Monetary Sanctions - GRANTED.

County: stanislaus

Division: Probate

Department: 22

Hearing date: 2012-04-02

Motion: a) Requests for Production The Court notes that the separate statement for this motion was not fully compliant with rule 3.1345 of the California Rules of Court because it grouped the requests for production and did not quote the requests and the responses verbatim. Nonetheless, to the extent that the tardy responses contained objections or were otherwise not fully code-compliant, the motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party. Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko. Petitioner to submit a proposed order within five court days that is consistent with this ruling. b) Form Interrogatories Petitioner's motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses to Form Interrogatory Nos. 2.1, 2.2, 12.1, 15.1, and 17.1 without objections within 21 days of service of the signed order on the Responding Party. Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko. Petitioner to submit a proposed order within five court days that is consistent with this ruling. c) Special Interrogatories Petitioner's motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party. Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko. Petitioner to submit a proposed order within five court days that is consistent with this ruling. d) Requests for Admissions Petitioner's motion is GRANTED. With regard to the requests numbered above 35, although the number of requests exceeds the statutory limit and there was apparently no declaration of necessity, any objection to the excessive number of requests and the lack of a declaration was waived due to the fact that responses were not timely served. (Cf. Code Civ. Proc., § 2033.030(b).) Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party. Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko. Petitioner to submit a proposed order within five court days that is consistent with this ruling. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

Source URL: <https://www.stanislaus.courts.ca.gov/online-services/tentative-rulings/civil-tentative-rulings>

Source SHA-256: 32f184efbb8805f473340df3c0ac86c6696f17f70fae4f7cf1b34e750f1d0f14

PR-25-001101 - IN THE MATTER OF EOFF, MATHEW - a) Petitioner's Motion to Compel Further Responses to Requests for Production of Documents, Set One, and for Monetary Sanctions - GRANTED; b) Petitioner's Motion to Compel Further Responses to Form Interrogatories, Set One, and for Monetary Sanctions - GRANTED; c) Petitioner's Motion to Compel Further Responses to Special Interrogatories, Set One, and for Monetary Sanctions - GRANTED; d) Petitioner's Motion to Compel Further Responses to Requests for Admissions, Set One, and for Monetary Sanctions - GRANTED.

a) Requests for Production

The Court notes that the separate statement for this motion was not fully compliant with rule 3.1345 of the California Rules of Court because it grouped the requests for production and did not quote the requests and the responses verbatim. Nonetheless, to the extent that the tardy responses contained objections or were otherwise not fully code-compliant, the motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party.

Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko.

Petitioner to submit a proposed order within five court days that is consistent with this ruling.

b) Form Interrogatories

Petitioner's motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses to Form Interrogatory Nos. 2.1, 2.2, 12.1, 15.1, and 17.1 without objections within 21 days of service of the signed order on the Responding Party.

Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko.

Petitioner to submit a proposed order within five court days that is consistent with this ruling.

c) Special Interrogatories

Petitioner's motion is GRANTED. Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party.

Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko.

Petitioner to submit a proposed order within five court days that is consistent with this ruling.

d) Requests for Admissions

Petitioner's motion is GRANTED.

With regard to the requests numbered above 35, although the number of requests exceeds the statutory limit and there was apparently no declaration of necessity, any objection to the excessive number of requests and the lack of a declaration was waived due to the fact that responses were not timely served. (Cf. Code Civ. Proc., § 2033.030(b).)

Responding Party shall provide supplemental verified, code-compliant responses without objections within 21 days of service of the signed order on the Responding Party.

Petitioner has requested sanctions but failed to set forth his costs. The Court therefore awards sanctions in the amount of the filing fee, \$60, against Responding Party Kelli Hrenko.

Petitioner to submit a proposed order within five court days that is consistent with this ruling.

The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23: